

SECTION 1: INDIAN CONSTITUTION — Complete

[KANNADA] —

1.1 Historical Background & Making of Constitution

1.1

- The idea of a Constituent Assembly for India was first put forward by M.N. Roy in 1934. The Indian National Congress officially demanded a Constituent Assembly in 1935. The British government accepted this demand in the August Offer of 1940. The Cripps Mission (1942) proposed a constitution-making body after WWII. The Cabinet Mission Plan (1946) provided the framework for the Constituent Assembly. The Constituent Assembly was formed in November 1946 under the Cabinet Mission Plan. It consisted of 389 members: 292 from British Indian provinces, 93 from princely states, and 4 from Chief Commissioners provinces. The first meeting of the Constituent Assembly was held on December 9, 1946, at the Constitution Hall (now Central Hall of Parliament). Dr. Sachidananda Sinha was elected as the temporary President. On December 11, 1946, Dr. Rajendra Prasad was elected as the permanent President of the Constituent Assembly. The historic Objectives Resolution was moved by Jawaharlal Nehru on December 13, 1946, and adopted on January 22, 1947. This resolution later became the Preamble of the Constitution. The Constituent Assembly formed various committees for drafting. The most important was the Drafting Committee, constituted on August 29, 1947, with Dr. B.R. Ambedkar as its Chairman. Other members included: N. Gopalaswami Ayyangar, Alladi Krishnaswamy Iyer, K.M. Munshi, Syed Mohammad Saadullah, N. Madhava Rao (replaced B.L. Mitter), and T.T. Krishnamachari (replaced D.P. Khaitan). The Drafting Committee submitted its draft in February 1948. The Constituent Assembly held 11 sessions over 2 years, 11 months, and 18 days. Total expenditure was approximately Rs. 64 lakh. The Assembly adopted the national flag on July 22, 1947. The Constitution was adopted on November 26, 1949 (Constitution Day/Samvidhan Diwas). It came into effect on January 26, 1950 (Republic Day) — chosen to honor January 26, 1930, when the INC first demanded Purna Swaraj. On that day, the Constituent Assembly became the Provisional Parliament of India until the first general elections in 1952.

[KN] M.N. 1934 . 1940
. 1946
1946 . 389 : 292 , 93 , 4 .
9, 1946. . . . (.11, 1946). .13,
1946 (.22, 1947) .
.29, 1947 1948 . 11 , 2
11 18 . : . 64 . .26, 1949 () .26, 1950 ()
).

- The Constituent Assembly functioned simultaneously as the law-making body for independent India from August 15, 1947 until the first Lok Sabha was constituted in 1952. During this period, it served as both the Constituent Assembly (in the morning sessions) and the Legislative Assembly (in the afternoon sessions). Dr. B.R. Ambedkar presented the final draft on November 4, 1948. The Assembly took up clause-by-clause discussion. A total of 7,635 amendments were proposed, of which 2,473 were actually discussed. On November 26, 1949, the Constitution was adopted with 284 members signing it. The original Constitution was handwritten by Prem Behari Narain Raizada in English and by Vasant Krishnan Vaidya in Hindi. It was calligraphed (not printed) and decorated by artists from Shantiniketan, including Nandalal Bose. Each page of the Constitution is decorated with artwork depicting India's history and culture.

[KN] .15, 1947 1952 . .
.4, 1948 . 7,635 ; 2,473 .26, 1949 284
. : ,
. : .

- The Indian Constitution is the longest written constitution in the world. At its inception, it had 395 Articles in 22 Parts and 8 Schedules. Over the years, it has grown to approximately 470 Articles in 25 Parts and 12 Schedules, with over 100 amendments. The Constitution establishes India as a "Union of States" (Article 1) — not a federation in the strict American sense. It provides for a Parliamentary system of government (borrowed from Britain), a federal structure with unitary bias (borrowed from Canada), Fundamental Rights (inspired by the US Bill of Rights), Directive Principles of State Policy (from the Irish Constitution), Fundamental Duties (from the USSR Constitution), and a blend of rigidity and flexibility in the amendment process (from South Africa). The Constitution declares India as a Sovereign, Socialist, Secular, Democratic Republic. It guarantees Justice — Social, Economic, and Political; Liberty of thought, expression, belief, faith, and worship; Equality of status and opportunity; and Fraternity assuring the dignity of the individual and the unity and integrity of the Nation.

[KN] . 22 395 8 . 25
~470 12 (100+) . " " (. 1)
. (), (), (USA), (),
(USSR), ().

1.2 The Preamble — Detailed Analysis

1.2 —

- TEXT OF THE PREAMBLE: "WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC and to secure to all its citizens: JUSTICE, social, economic and political; LIBERTY of thought, expression, belief, faith and worship; EQUALITY of status and of opportunity; and to promote among them all FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation; IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949, do HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION." The Preamble is based on the Objectives Resolution drafted and moved by Pandit Jawaharlal Nehru on December 13, 1946, and adopted by the Constituent Assembly on January 22, 1947. The words "Socialist," "Secular," and "Integrity" were added to the Preamble by the Constitution (42nd Amendment) Act, 1976, during the Emergency. In the Berubari Union Case (1960), the Supreme Court initially held that the Preamble is NOT a part of the Constitution. However, in the landmark Keshavananda Bharati v. State of Kerala case (1973), a 13-judge bench overruled this and held that the Preamble IS a part of the Constitution. In the LIC of India Case (1995), the Supreme Court again held that the Preamble is an integral part of the Constitution.

[KN] : " , ..."
(.13, 1946) . " , " , " ""
42 (1976) . (1960): .
(1973): 13 — . LIC (1995): .

- SOVEREIGN: India is an independent state and is not subject to the control of any external power. The country is free to conduct its internal and external affairs. The word Sovereign emphasizes that India has the supreme power to make its own decisions. India is a member of the Commonwealth of Nations, but this does not affect its sovereignty. SOCIALIST: The word "Socialist" was added by the 42nd Amendment in 1976. It reflects the goal of a welfare state that seeks to reduce inequalities in income and status. Indian socialism is democratic socialism — not communist socialism. It believes in a mixed economy where both public and private sectors coexist. The state aims to end all forms of exploitation and ensure a fair distribution of wealth. SECULAR: Also added by the 42nd Amendment. It means the State has no official religion. All religions are treated equally by the State. Every citizen has the right to profess, practice, and propagate any religion. India follows the concept of "positive secularism" or "Sarva Dharma Sambhava" — equal respect for all religions. DEMOCRATIC: India is a democracy where the people elect their representatives through universal adult franchise (originally 21 years, reduced to 18 by the 61st Amendment, 1989). The government derives its authority from the consent of the governed. Elections are held regularly by an independent Election Commission. REPUBLIC: India has an elected Head of State — the President of India. There is no hereditary monarch. The President is elected indirectly by an electoral college for a term of 5 years and can be re-elected.

[KN] : . : 42 1976. , . : 42
1976. . " ." : (61 1989 —
21→18). . : (5).

1.3 Fundamental Rights (Part III, Articles 12-35)

1.3 (III, 12-35)

- RIGHT TO EQUALITY (Articles 14-18): Article 14: "The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India." This has two aspects: (a) Equality before law — a negative concept, borrowed from the UK, meaning no person is above the law; (b) Equal protection of laws — a positive concept, borrowed from the USA, meaning similar treatment in similar circumstances. Article 14 permits reasonable classification but prohibits class legislation. Article 15: Prohibition of discrimination on grounds of religion, race, caste, sex, or place of birth. Clause (6) was added by the 103rd Amendment (2019) to provide 10% reservation for Economically Weaker Sections (EWS) in educational institutions. Article 16: Equality of opportunity in matters of public employment. Clause (4A) provides reservation in promotion for SC/ST (77th Amendment, 1995). Clause (4B) allows carry-forward of unfilled vacancies (81st Amendment, 2000). Article 16(6) added by 103rd Amendment 2019 for EWS. Article 17: Abolition of Untouchability — enforced by Protection of Civil Rights Act, 1955 (originally Untouchability Offences Act). Practicing untouchability is a criminal offense. Article 18: Abolition of Titles — prohibits the State from conferring any title (except military or academic distinctions). Bharat Ratna, Padma awards are not "titles" under Art 18 (Balaji Raghavan case, 1995). Foreign nationals cannot accept titles from foreign states without the President's consent.

[KN] (14-18): . 14 — (UK) + (USA). . 15 — . 103
2019 — EWS 10%. . 16 — . 77 & 81 — SC/ST . .
17 — (1955). . 18 — (/).

- RIGHT TO FREEDOM (Articles 19-22): Article 19 guarantees six freedoms to all citizens: (a) Freedom of speech and expression — includes right to know, right to information, right to remain silent, freedom of press (implied), right to express through any medium; (b) Freedom to assemble peaceably and without arms; (c) Freedom to form associations or unions or cooperative societies (97th Amendment 2011 added "cooperative societies"); (d) Freedom to move freely throughout the territory of India; (e) Freedom to reside and settle in any part of India; (f) Freedom to practice any profession, or to carry on any occupation, trade, or business. The 44th Amendment 1978 deleted Article 19(1)(f) — Right to property — and made it a legal right under Article

300A. Reasonable restrictions can be imposed on these freedoms on grounds of: sovereignty, integrity, security of State, friendly relations with foreign states, public order, decency or morality, contempt of court, defamation, or incitement to an offense. Article 20: Protection in respect of conviction for offenses — (1) No ex-post facto law (cannot punish an act that was not an offense when committed), (2) No double jeopardy (no person can be prosecuted and punished for the same offense more than once), (3) No self-incrimination (no person accused of an offense can be compelled to be a witness against himself). Narco-analysis, brain mapping, and polygraph tests without consent violate Article 20(3). Article 21: Protection of Life and Personal Liberty — "No person shall be deprived of his life or personal liberty except according to procedure established by law." The Supreme Court has expanded the scope of Article 21 through judicial interpretation (the "golden triangle" — Articles 14, 19, and 21). Key rights under Article 21 include: Right to privacy (Justice K.S. Puttaswamy case, 2017 — 9-judge bench declared privacy a fundamental right), Right to livelihood, Right to clean environment, Right to education (now Art 21A), Right to health, Right to speedy trial, Right against handcuffing, Right against solitary confinement, Right to legal aid, Right to shelter, Right to electricity, Right to information. Article 21A: Inserted by the 86th Constitutional Amendment Act, 2002 — "The State shall provide free and compulsory education to all children of the age of six to fourteen years in such manner as the State may, by law, determine." The RTE Act was enacted in 2009 to implement this. Article 22: Protection against arrest and detention — safeguards against arbitrary arrest: right to be informed of grounds of arrest, right to consult and be defended by a legal practitioner, right to be produced before a magistrate within 24 hours (excluding journey time). Preventive detention laws can be challenged if not following procedure.

[KN] (19-22): . 19 — 6 (, , , ,). 44 1978 —
 . 300A. . 20 — ex-post facto, double jeopardy, self-incrimination. . 21 — (2017 —). . 21A — (86 2002, 6-14). RTE 2009. . 22 —
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- RIGHT AGAINST EXPLOITATION (Articles 23-24): Article 23: Prohibition of traffic in human beings and forced labour — "begar" (compulsory work without payment) is prohibited. Bonded labour is unconstitutional. The Bonded Labour System (Abolition) Act, 1976, was enacted. Article 23(2) allows the State to impose compulsory service for public purposes, but such service cannot discriminate on grounds of religion, race, caste, or class. Article 24: Prohibition of employment of children in factories, etc. — "No child below the age of fourteen years shall be employed to work in any factory or mine or engaged in any other hazardous employment." The Child Labour (Prohibition and Regulation) Act, 1986, was enacted. In 2016, an amendment prohibited employment of children below 14 in ALL occupations (except family businesses and entertainment). RIGHT TO FREEDOM OF RELIGION (Articles 25-28): Article 25: Freedom of conscience and free profession, practice, and propagation of religion — subject to public order, morality, and health. The right to propagate does NOT include the right to convert. Article 26: Freedom to manage religious affairs — every religious denomination has the right to: (a) establish and maintain institutions, (b) manage its own affairs, (c) own and acquire property, (d) administer such property. Article 27: Freedom as to payment of taxes for promotion of any particular religion — no person shall be compelled to pay taxes the proceeds of which are specifically used for promoting any religion. Article 28: Freedom as to attendance at religious instruction or worship in certain educational institutions — no religious instruction in state-funded institutions.

[KN] (23-24): . 23 — , , . 24 — 14
 . (25-28): . 25 — /. . 26 — . . 27 —
 . . 28 — .

- CULTURAL AND EDUCATIONAL RIGHTS (Articles 29-30): Article 29: Protection of interests of minorities — any section of citizens with a distinct language, script, or culture has the right to conserve it. No citizen can be denied admission to any state-maintained educational institution on grounds of religion, race, caste, language, or any of them. Article 30: Right of minorities to establish and administer educational institutions — all minorities (religious or linguistic) have the right to establish and administer educational institutions of their choice. In T.M.A. Pai Foundation case (2002), the Supreme Court laid down guidelines regarding minority institutions. RIGHT TO CONSTITUTIONAL REMEDIES (Article 32): Dr. B.R. Ambedkar described Article 32 as the "Heart and Soul of the Constitution." It gives every citizen the right to move the Supreme Court directly for the enforcement of Fundamental Rights. The Supreme Court has the power to issue directions, orders, or writs for the enforcement of any of the Fundamental Rights. Five types of writs: (1) Habeas Corpus — "to have the body" — to produce a detained person before the court, (2) Mandamus — "we command" — directs a public authority to perform its duty, (3) Prohibition — "to forbid" — prevents a lower court from exceeding its jurisdiction, (4) Quo-Warranto — "by what authority" — challenges a person holding a public office, (5) Certiorari — "to be certified" — transfers a case from a lower court to a higher court. High Courts can also issue writs under Article 226, which has a wider scope than Article 32. The right to move the Supreme Court under Article 32 can be suspended during a National Emergency (Article 359).

[KN] (29-30): . 29 — . . 30 —
 (T.M.A. 2002). (32): " " — . . 5 : , ,
 , -, . . 226 — . . 32 (359).

1.4 Directive Principles of State Policy (Part IV, Art 36-51)

1.4 (DPSP, IV, . 36-51)

- DPSP are enumerated in Part IV, Articles 36-51 of the Constitution. They are inspired by the Directive Principles of Social Policy in the Irish Constitution (1937). These principles are "fundamental in the governance of the country" and it is the "duty of the State to apply these principles in making laws" (Article 37). However, they are non-justiciable — meaning they cannot be enforced by any court of law. If the State fails to implement them, no court can compel the government. DPSP aim to establish a "Welfare State" in India — not a mere "Police State." They represent the socio-economic goals that the State should strive to achieve. Classification of DPSP: (A) SOCIALIST PRINCIPLES: Article 38 — State to secure a social order for the promotion of welfare of the people. Article 39 — Certain principles of policy to be followed by the State: (a) adequate means of livelihood, (b) equitable distribution of resources, (c) prevention of concentration of wealth, (d) equal pay for equal work, (e) protection of workers, (f) protection of children and youth. Article 39A — Equal justice and free legal aid (added by 42nd Amendment). Article 41 — Right to work, to education, and to public assistance in certain cases. Article 42 — Provision for just and humane conditions of work and maternity relief. Article 43 — Living wage, etc., for workers. Article 43A — Participation of workers in management of industries (added by 42nd Amendment). Article 47 — Duty of the State to raise the level of nutrition and the standard of living and to improve public health.

[KN] DPSP IV (. 36-51). . (. 37). (Welfare State): .

(A) — . 38 (), . 39 (), . 39A (), . 41 (/), . 42 (), . 43 (), . 43A (), . 47 ().

- (B) GANDHIAN PRINCIPLES: Article 40 — Organisation of village panchayats (the 73rd Amendment 1992 gave this constitutional status). Article 43 — Promotion of cottage industries. Article 43B — Promotion of cooperative societies (added by 97th Amendment 2011). Article 46 — Promotion of educational and economic interests of SCs, STs, and other weaker sections. Article 47 — Prohibition of consumption of intoxicating drinks and drugs (except for medicinal purposes). Article 48 — Prohibition of slaughter of cows, calves, and other milch and draught cattle. (C) LIBERAL-INTELLECTUAL PRINCIPLES: Article 44 — Uniform Civil Code (UCC) for all citizens. Article 45 — Provision for early childhood care and education to children below the age of 6 years (amended by the 86th Amendment 2002, originally free and compulsory education for children). Article 48A — Protection and improvement of environment and safeguarding of forests and wildlife (added by 42nd Amendment). Article 49 — Protection of monuments, places, and objects of national importance. Article 50 — Separation of judiciary from the executive in the public services of the State. Article 51 — Promotion of international peace and security, maintenance of just and honorable relations between nations, foster respect for international law and treaty obligations. STATUS OF DPSP: In the Champakam Dorairajan case (1951), the SC held that DPSP cannot override Fundamental Rights. The 42nd Amendment (1976) gave primacy to DPSP over FRs — this was struck down in the Minerva Mills case (1980). The SC held that harmony and balance between FRs and DPSP is an essential feature of the Basic Structure.

[KN] (B) — . 40 (), . 43 (), . 46 (SC/ST), . 47 (), . 48 () . (C) - — . 44 (UCC), . 45 (), . 48A (), . 49 (), . 50 (), . 51 (). (1951): DPSP, FR . (1980): .

(C) - — . 44 (UCC), . 45 (), . 48A (), . 49 (), . 50 (), . 51 (). (1951): DPSP, FR . (1980): .

1.5 Major Constitutional Amendments

1.5

- CONSTITUTIONAL AMENDMENT PROCEDURE (Article 368): The Constitution of India can be amended in three ways: (1) Amendment by simple majority of Parliament — not under Art 368 (e.g., abolition/creation of Legislative Councils, changing state boundaries, citizenship provisions). (2) Amendment by special majority under Art 368 — requires: (a) majority of total membership of each House AND (b) 2/3rd majority of members present and voting. Most amendments fall under this category. (3) Amendment by special majority + ratification by half of State Legislatures — for federal provisions (election of President, Supreme Court/High Courts, distribution of legislative powers, representation of states in Parliament, Article 368 itself). COMPLETE LIST OF CRITICAL AMENDMENTS: 1st Amendment (1951): Added Article 31A, 31B, and 9th Schedule. Empowered the State to make special provisions for backward classes. Added reasonable restrictions on free speech (public order, friendly relations, incitement to offense). 4th Amendment (1955): Empowered the State to nationalize trade. Reduced compensation for acquired property. 7th Amendment (1956): State Reorganisation on linguistic basis. Abolished Part A/B/C/D states. Introduced Union Territories. 10th Amendment (1961): Incorporated Dadra and Nagar Haveli as UT. 12th Amendment (1962): Incorporated Goa, Daman & Diu as UT. 14th Amendment (1962): Incorporated Pondicherry. 24th Amendment (1971): Affirmed Parliament's power to amend any part of Constitution including FRs. Made Presidential assent mandatory for amendment bills (President cannot withhold or return). 25th Amendment (1971): Curtailed right to property. Added Art 31C — laws giving effect to DPSP (Art 39b, 39c) cannot be challenged as violating Art 14, 19. 26th Amendment (1971): Abolished privy purses and privileges of former rulers of princely states.

[KN] (. 368): : (1) , (2) (2/3), (3) + . 1

(1951): 9 . 4 (1955): . 7 (1956): . 10 (1961): . 12 (1962):

. 14 (1962): . 24 (1971): FR . 25 (1971): . 31C. 26 (1971):

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- 42ND AMENDMENT (1976) — THE "MINI CONSTITUTION": Enacted during the Emergency (1975-77) under Indira Gandhi. Most comprehensive amendment — amended 59 Articles, added 14 new Articles, modified Preamble. Key changes: (1) Added

"Socialist," "Secular," and "Integrity" to the Preamble. (2) Added Part IVA — Fundamental Duties (Article 51A). Original 10 duties. 11th duty added by 86th Amendment 2002 (parent/guardian to provide education to child aged 6-14). (3) Amended Article 31C — all laws giving effect to ANY DPSP protected from FRs (struck down in Minerva Mills 1980). (4) Added Articles 323A, 323B — Administrative Tribunals and other tribunals. (5) Curtailed judicial review power of SC and HCs. (6) Extended Lok Sabha and State Assembly term from 5 to 6 years. (7) Made DPSP superior to FRs. (8) Transferred 5 subjects from State List to Concurrent List (Education, Forests, Weights & Measures, Protection of Wild Animals & Birds, Administration of Justice). 43RD AMENDMENT (1977): Restored judicial review powers curtailed by 42nd Amendment. 44TH AMENDMENT (1978): Enacted by Janata Party government to undo many 42nd Amendment changes. Key: (A) Deleted Right to Property from FRs — made legal right under Art 300A. (B) Restored 5-year term for Lok Sabha and Assemblies. (C) Ensured President can return Cabinet's advice for reconsideration. (D) Made it harder to declare Emergency — need written advice from Cabinet. (E) Added safeguards against preventive detention.

[KN] 42 (1976) — : . 59 , 14 . //. IVA (, . 51A-10). . 5 6 . 43 (1977). 44 (1978): → . 300A. 5 . . .

- 52ND AMENDMENT (1985): Anti-Defection Law. Added 10th Schedule. Disqualification on ground of defection: (1) If member voluntarily gives up membership of party, (2) If member votes/abstains contrary to party whip. Exceptions: Merger — if 2/3rd members merge with another party. Previously split of 1/3rd was allowed — removed by 91st Amendment (2003). The Speaker/Chairman decides on disqualification — subject to judicial review (Kihoto Hollohan case 1992). 61ST AMENDMENT (1989): Reduced voting age from 21 to 18 years (Article 326). Came after the 1988 general elections where youth participation was a key issue. 73RD AMENDMENT (1992): Constitutional status to Panchayati Raj. Added Part IX (Art 243-243O) and 11th Schedule (29 subjects). Three-tier system. Mandatory 5-year elections. Reservation for SC/ST and women (1/3rd). State Election Commission. State Finance Commission (every 5 years). Gram Sabha. All states required to enact conforming legislation within 1 year. April 24, 1993: Panchayati Raj Divas. 74TH AMENDMENT (1992): Constitutional status to Urban Local Bodies. Added Part IXA and 12th Schedule (18 subjects). Three types of municipalities. 86TH AMENDMENT (2002): Right to Education. Inserted Article 21A — free and compulsory education for children aged 6-14 years. Amended Article 45 (DPSP) to provide early childhood care. Added Article 51A(k) — Fundamental Duty of parent/guardian. RTE Act 2009 — implementation legislation. 101ST AMENDMENT (2016): GST. Inserted Articles 246A, 269A, 279A. GST Council. One Nation One Tax. 103RD AMENDMENT (2019): 10% EWS reservation. 106TH AMENDMENT (2023): 33% Women reservation in Lok Sabha and Assemblies.

[KN] 52 (1985): (10). (1992). 61 (1989): 21→18. 73 (1992): (IX, 11 -29). 74 (1992): (IXA, 12 -18). 86 (2002): (. 21A, 6-14 , RTE 2009). 101 (2016): GST. 103 (2019): EWS 10%. 106 (2023): 33%.